

Criminal Law and Procedure

This chapter covers two central aspects of criminal law: the types of conduct that constitute crimes, substantive criminal law; and the rules that must be followed in redressing crimes, criminal procedure. A crime is defined as a wrong committed against society or against the community in general. A wrong committed against one or more specific individuals or the property of one or more individuals is a civil wrong, or a tort.

Jurisdiction

In certain instances, the U.S. Constitution grants jurisdiction to the federal government to regulate while also reserving jurisdiction to the states in others. However, in some instances jurisdiction is shared, or concurrent.

For example, John murders Jack outside a movie theater in San Diego. John immediately surrenders to authorities. In this instance, the state jurisdiction applies. However, if Jack were murdered in a post office (federal property) in San Diego, if Jack were a federal official, or if John had fled across state lines, federal jurisdiction would have been activated. Concurrent jurisdiction would exist if John had committed the murder while robbing a federal bank.

Federal Jurisdiction

The federal government has jurisdiction to define and to enforce crimes in the following places and instances:

- the District of Columbia, U.S. territories, and federal property, such as military bases, national parks, federal buildings
- persons on American ships or in American aircraft in or over international territory
- conduct of American citizens located abroad
- conduct or activities within individual states when the power to regulate the conduct or activity is expressly granted by the Constitution, such as taxation, federal officials, interstate commerce, and activities that cross state lines

State Jurisdiction

Criminal offenses are usually prosecuted at the state level in the United States. Each state has inherent power to police, or regulate, in the protection or promotion of public health, safety, welfare, or morals.

Under common law, where a crime occurred determined which state had jurisdiction. For instance, if a slanderous statement was written in one state but published in another, the second state had jurisdiction because the publication of the slander was the prohibited act. However, under modern principles, a person can be prosecuted under the following conditions by a state for:

- an offense committed within the state, in whole or in part. The occurrence can be either conduct or a result that is an element of the offense. With homicide, for instance, the occurrence is either the physical contact causing death or the death itself.
- conduct outside the state that constitutes an attempt to commit or conspiracy to commit an offense within the state.

- conduct within the state that constitutes an attempt to commit or a conspiracy to commit an offense outside the state.
- omission to perform a duty required by a state law is an offense in that state, regardless as to where the offender is located at the time of the omission.

Sources of Criminal Law

Although many sources are woven into the overall fabric of the American legal system, the criminal law is one of the most important parts of that system. The common law, the constitution, statutes, administrative rules and regulations as well as the Model Penal Code, where applicable, all contain rules used to define criminal conduct.

Common Law

The common law brought from England by the colonists defined common law crimes. These laws were enforced by courts when specific statutes were unavailable. Although there is no federal common law of crimes, Congress recognizes common law crimes in the District of Columbia. Some states still retain common law crimes either by implication or by specific "retention statutes." The modern trend is to abolish common law crimes by an express statute of abolition or by adoption of comprehensive criminal codes to replace common law crimes. In these states, common law defenses may be retained; however, most defenses are also statutory.

Constitution

Pursuant to the United States Constitution, Congress has power to legislate in certain areas, such as interstate commerce. As such, only Congress may define criminal conduct in these specific areas. Nonetheless, all powers not given specifically to the federal government are reserved to the states for regulation.

Statute

Although federal criminal law is governed exclusively by statutes adopted by Congress, a majority of state criminal law is governed by statutes adopted by the state legislative body. Today, many states employ a system of comprehensive criminal codes similar to that of the Model Penal Code.

Administrative

An administrative agency may be delegated authority by a federal or state legislature to promulgate rules, the violation of which may be punishable as a crime. However, a legislature cannot delegate the power to decide which regulations will carry criminal punishments, nor may it delegate the power of adjudication, determining guilt or innocence, concerning conduct that may result in criminal punishment. For instance, a person who violates the Securities and Exchange Commission's, SEC, antifraud rules may be subject to criminal punishment. As such, individuals charged with such a violation are tried in the federal court system, rather than by the SEC. This authority is quite different from the quasi-judicial functions that may be delegated, such as issuance and revocation of certain types of licenses or fines imposed for violation of agency rules and regulations.

Theories of Punishment

Although considerable controversy exists concerning whether they serve their intended purpose, restraint, deterrence, retribution, and rehabilitation are the primary theories advanced to justify criminal punishment.

Restraint

A person restrained or incapacitated by imprisonment has fewer opportunities to engage in conduct that is harmful to society in general.

Deterrence

There are two forms of deterrence: individual deterrence and general deterrence. Individual deterrence occurs when a criminal is punished, and he, as an individual, is deterred from committing

future crimes. General deterrence occurs when a criminal is punished, and others are deterred from committing similar crimes for fear of incurring the same punishment.

Retribution

In the theory of punishment, retribution serves the purpose of expressing society's outrage at, and its need for revenge for, an offender's criminal conduct. In addition to society's need to get even with a criminal offender and to purge itself by removing the offender from its midst, proponents of retribution maintain that the availability of institutionalized retribution is essential to prevent forms of personal retribution, such as lynch mobs or personal retribution by a victim's family.

Rehabilitation

In theory, punishment of criminal conduct, such as imprisonment, provides the opportunity to reform or to rehabilitate a criminal into a person who will abide by society's rules at the end of the prison term. Although much debate has arisen over whether criminals are rehabilitated under existing prison conditions, the erecting of prisons continues.

Classification of Crimes

Criminal conduct is classified according to its seriousness. As such, the most severe punishments have long been reserved for the most serious crimes. Under common law, all crimes were classified as treason, felonies, or misdemeanors. Specifically, murder, rape, manslaughter, robbery, sodomy, larceny, arson, mayhem, and burglary were classified as felonies under common law while all other crimes were classified as misdemeanors. In modern times, statutes have expanded the classifications of criminal conduct.

A crime that involves conduct that is inherently bad or wrong is called crime *malum in se*, "an evil in itself." A crime that involves conduct which is wrong because the legislature says it is wrong is referred to as crime *malum prohibitum*, "a prohibited evil."

An attempt to overthrow a government or to betray a government in favor of a foreign power is called treason. In accordance to Article III, Section 3, of the U.S. Constitution, a person may only be convicted of treason upon the testimony of two witnesses or by confession in open court. A crime punishable by death is referred to as a capital crime. Rather than having a separate classification for capital crimes, many jurisdictions include them in the overall felony classification.

A crime for which the maximum punishment may be death or imprisonment for one year or more is called a felony. However, a person may be sentenced to a prison term of less than one year upon conviction of a felony. Remember, the critical point is the maximum sentence that may be imposed upon conviction, not the sentence actually imposed. A crime for which the maximum punishment may be imprisonment for less than one year is referred to as a misdemeanor. Violations of statutory law, which may only result in a fine, are also classified as misdemeanors.

Constitutional Limitations

Incorporated into the Fifth and Fourteenth Amendments, the Due Process Clause of United States Constitution has been interpreted by the U.S. Supreme Court to require that no criminal penalty be imposed without fair notice that the conduct is prohibited. In addition, Sections 9 and 10 of Article I of

the Constitution place substantive restrictions on both federal and state legislatures in defining criminal conduct.¹⁹⁰

Void for Vagueness

A criminal law may be made void for vagueness under the Constitution if it fails to give citizens fair warning of the conduct that is prohibited by it. A statute must give a person of ordinary intelligence fair notice of what conduct is forbidden. In addition, a statute cannot encourage arbitrary arrests and convictions. In such an instance, a statute may be attacked on overbreadth grounds as well as on vagueness grounds.

Under these considerations, statutes that are capable of reaching conduct that is otherwise protected by the Constitution, such as freedom of speech, freedom to assemble, freedom to petition the government, or freedom to move from one place to another, must be strictly scrutinized. Statutes directed at vagrancy, restriction of parades, and the like are subject to particular scrutiny under these principles.¹⁹¹

Ex Post Facto Laws

The U.S. Constitution specifically forbids adoption of ex post facto laws, which are laws that operate retroactively to:

- make an act criminal that was not criminal at the time it was performed
- aggravate a crime or increase the punishment for a crime to make it more serious than when the criminal act was performed

- change the rules of evidence to the detriment of criminal defendants as a class to make the rules more stringent for the defendant than when the criminal act was performed

- change the rules of criminal procedure to deprive criminal defendants of a substantive right that a defendant would have had at the time the criminal act was performed

Bill of Attainder

A legislative enactment that imposes a punishment or denies a privilege without a judicial trial is referred to as a bill of attainder. Although a bill of attainder can also be an ex post facto law, a distinction can be made in that an ex post facto law does not necessarily deprive the accused of a judicial trial. A bill of attainder always does; therefore, the United States Constitution specifically forbids adoption of bills of attainder.¹⁹²

Interpretation of Criminal Laws

Whether created by statute or by adoption, substantive criminal laws are subject to accepted methods of interpretation.

Plain Meaning Rule

A court must give effect even if the court believes a statute is unwise or is undesirable when the language of a statute is plain, and its meaning is clear. The only exception to this rule is when the court

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believes that application of the statute's plain meaning would result in injustice, oppression, or an absurd result.

Strict Construction

A statute must be strictly construed in favor of a defendant when the language of a criminal statute is ambiguous. A statute that is capable of two or more equally reasonable interpretations is considered ambiguous. A vague statute is one that is so unclear that a person of ordinary intelligence cannot tell what conduct is prohibited.¹⁹³

Effect of Repeal

The repeal of a criminal statute operates to bar prosecution for earlier violations, provided the prosecution has not yet commenced at the time of the repeal under common law rules and in the absence of a saving provision. However, the repeal of a criminal statute cannot be used to set free a person who has already been prosecuted and convicted under the repealed statute. Many of the new, comprehensive criminal codes include a specific saving provision so that crimes committed prior to the effective date of the new code are subject to prosecution and punishment under the law as it existed at the time when the offense was committed.¹⁹⁴

Essential Elements of a Crime

Under principles of Anglo-American criminal law, culpability rests upon particular requirements that are observed by legislatures and by courts when defining substantive criminal conduct. As a result, a prosecutor is usually required to prove the following elements of a criminal offense:

- Actus Reus “guilty act”: a physical act or unlawful omission by the defendant
- Mens Rea “guilty mind”: the state of mind, or intent, of the defendant at the time of the act
- Causation: the defendant’s act must be a proximate cause of the resulting harm
- Harmful Result: a harmful result caused both factually and proximately by a defendant’s act

The Physical Act (Actus Reus)

For criminal liability to exist, a defendant must have either performed a voluntary, physical act or must have failed to act when he had a legal duty to act. Accordingly, an act is defined as bodily movement. Consequently, a bad thought alone cannot constitute a crime. On the other hand, speech may be an act that can create liability, such as perjury.

The act must be a conscious exercise of voluntary will. In other words, reflexive or convulsive acts, which are not the product of the defendant’s determination, or acts performed while the defendant is unconscious or asleep, are not voluntary.

For example, Adam pushes Jim, who stumbles into Carl’s path, with the result that Carl slips and plunges to his death. With only these circumstances, Jim cannot be held criminally liable for Carl’s death.

In some instances, possession is treated as a wrongful act. A possession offense may be actual or constructive. When a defendant is found with marijuana in his pants pocket, the possession is actual.

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However, when the marijuana is found in an automobile owned and driven by the defendant, the possession is constructive.¹⁹⁵

Although most crimes are premised on an affirmative act by a defendant, a defendant’s failure to act can result in criminal liability if a defendant had a legal duty to act, and it was reasonably possible for the defendant to perform the duty or to obtain the help of others to perform it. A defendant can be subject to a legal duty to act in the following situations:

- when a statute requires the action, such as filing an accident report
- when a defendant contracts for the duty, such as working as a lifeguard
- when the relationship creates a duty, such as a parent’s duty to prevent physical harm to his child
- when a defendant voluntarily assumes a duty, such as a Good Samaritan, and does not satisfy reasonable standards of care
- when the hazard was created by a defendant

Intent (Mens Rea)

In order to distinguish between inadvertent acts and acts performed with a “guilty mind” under common law rules, intent is usually required; therefore, intent has been incorporated into some statutes, and acts performed with a guilty mind are deemed more blameworthy. Intent may be specific or general. However, in some cases, mens rea is not required at all, such as in strict liability crimes.

Specific Intent Some crimes are defined in such a way that a specific intent must accompany the wrongful act. For instance, a statute may define first degree murder as requiring premeditation. In such an instance, a prosecutor must prove not only that the victim was killed by the defendant, but also the defendant planned the killing ahead of time. Specific intent cannot be presumed simply by the performance of the act. Some defenses, such as intoxication, apply only to specific intent crimes. Specific intent crimes may also include assault; attempt; or larceny.¹⁹⁶

General Intent With exception to specific intent and strict liability crimes, all crimes are general intent crimes. General intent merely requires that an accused person is aware that a prohibited act is being committed, and a prohibited result is likely to occur. Since people are generally presumed to know the probable consequences of their acts, general intent can be inferred by the performance of the act.¹⁹⁷

Transferred Intent The concept of transferred intent is borrowed from general tort rules, in which a defendant’s intent is transferred to fit the result. Cases of transferred intent are sometimes called bad aim cases. For example, if A intends to shoot B but misses, shooting C instead, the concept of transferred intent allows A to be found guilty of C’s murder even though A’s intent was directed at B.¹⁹⁸

¹⁹⁵ Virginia K. Newman, JD, Paralegal Review Manual, p.645

¹⁹⁶ Virginia K. Newman, JD, Paralegal Review Manual, p.645

¹⁹⁷ Virginia K. Newman, JD, Paralegal Review Manual, p.646

Strict Liability A strict liability crime is one in which the commission of the prohibited act renders a defendant guilty without regard to his intent. Intent is conclusively presumed by the use of a legal fiction. Strict liability crimes often involve violation of a regulation and customarily result in a minor punishment, such as a fine. For instance, the failure to register firearms sold under federal law is a strict liability crime.

Model Penal Code The Model Penal Code (M.P.C.) rejects the sometimes esoteric distinction between general and specific intent. Instead, the M.P.C. proposes four separate states of mind for which criminal liability may be imposed: purposeful, knowing, reckless, and negligent.

- A defendant acts purposefully when he consciously desires or seeks his conduct to cause a particular result.

- A defendant acts knowingly when he is aware that his conduct is almost certain to cause a particular result.
- A defendant acts recklessly when he is aware that there is a risk that his conduct might cause a particular result.
- A defendant acts negligently when he should be aware that there is a risk that his conduct might cause a particular result.

The risk involved in the definitions of reckless and negligent under the M.P.C. must be substantial and unjustifiable. In addition, and unlike the common law rules, the M.P.C. assigns a particular state of mind to each element of the crime. For example, the crime of rape requires that the act of sexual intercourse with the victim be purposeful; however, the element of the victim's non-consent may require only negligence.¹⁹⁹

Liability for the Acts of Others

A crime may have many participants. The common law recognized four types of participants to a felony: principals in the first degree; principals in the second degree; accessories before the fact; and accessories after the fact. The distinctions were not used for treason or for misdemeanors, in which all parties were treated as principals. Today, principals in the second degree and accessories before the fact are called accomplices, and the following general classifications are made:

- A principal or actor is one who, with the required mental state, engages in the act or omission that causes the criminal result.
- An aider and abettor is one who aids, counsels, helps, procures, commands, or encourages another in the commission of the crime.
- A co-conspirator is liable for all crimes committed during and in furtherance of the conspiracy.
- An accessory after the fact is one whose involvement does not begin until after the crime has been completed.

Misprision of felony and compounding a felony are two other types of assistance after the crime that can lead to criminal liability. Failure to report a known felony is referred to as misprision of felony. There are not many states which list this as a crime, and there are few reported prosecutions of this crime in the United States. The acceptance of money or other consideration in exchange for not prosecuting a victim or in exchange for not reporting as a witness to a felony is called compounding a felony.²⁰⁰

Inchoate Offenses

There are three inchoate offenses: solicitation, attempt, and conspiracy. These offenses are often classified as felonies. An offense committed prior to and in preparation for what may be a more serious offense is called an inchoate. It is a complete offense in itself even though the act to be done may not have been completed. Inchoate offenses were misdemeanors under the doctrine of merger in common law but rose to the level of felonies when the principal offense was carried out.

In many jurisdictions, the merger doctrine has been replaced by conspiracy, and an accused can be convicted of both conspiracy and the principal offense. However, an accused cannot be convicted of either solicitation or attempt in addition to the principal offense.

Solicitation

Soliciting another to commit a felony or an act that would breach the peace or would obstruct justice was a common law misdemeanor. Solicitation consisted of inciting, counseling, advising, inducing, urging, or commanding another to commit a felony with the specific intent that the person solicited would commit the crime. The crime of solicitation was complete when the solicitation was made; it was not necessary that the person solicited agreed to commit the crime or do anything else in response to the solicitation. When the solicited person committed the crime, the solicitor would be liable for the crime as a principal or party. When the solicited person proceeded far enough to be liable for attempt, the solicitor would be a party to that attempt. Today, most criminal statutes retain the crime of solicitation; however, these usually restrict it to solicitation of serious felonies only.

Conspiracy

Under common law rules, a conspiracy was a combination or agreement between two or more persons to accomplish a criminal or an unlawful purpose or to accomplish a lawful purpose by unlawful means. Today, however, many states require that the object of the conspiracy be specifically prohibited by statute. The four elements of conspiracy are:

- an agreement between two or more persons
- an intent to enter into an agreement
- an intent to achieve the object of the agreement
- an overt act in furtherance of the conspiracy by at least one party.

Under the traditional definition, an agreement, itself, is the culpable act, *actus reus*. Distinct from attempt, an “overt act” or other conduct in furtherance of a conspiracy is required. Although a majority of states now require an act in furtherance of a conspiracy, preparation for the act will usually suffice.

Under common law, if the conspirators completed the crime, the crime of conspiracy “merged” into the completed crime; and the accused could be convicted only of the completed crime. Under modern statutes, successful conspirators can be convicted of both criminal conspiracy and of the crime they have successfully completed.

Offenses against a Person

Specific offenses against the person vary widely from state to state. The following are general, common law crimes, which may be and have in some cases been altered substantially by the statutes of a particular state.

The Wharton Rule

When two or more people are necessary for the commission of the crime, for example adultery, gambling, or drag racing on public streets, the Wharton Rule states that there is no crime of conspiracy unless more parties participate in the agreement than are necessary for the crime.²⁰¹

Assault An assault is either an attempt to commit a battery; or the intentional creation of a reasonable fear in the mind of the victim of imminent bodily harm. Simple assault is a misdemeanor. Aggravated assaults, with a dangerous weapon, with a deadly weapon, or with intent to maim, rape, or murder, are treated more severely and are generally classified as felonies. When there has been an actual touching of the victim, the crime is a battery. However, if there has been no touching, the act may or may not be an assault, depending upon the situation.²⁰²

Battery Battery is an unlawful application of force to another person which results in bodily injury or results in an offensive touching. Simple battery is a misdemeanor. Generally, aggravated battery is a felony. A battery does not have to be intentional; it is enough if a defendant causes the application of force with criminal negligence. Moreover, the force does not have to be applied directly. If it is applied by means of another force or by a substance placed into action by the defendant, it is sufficient. For example, causing a dog to attack or causing a victim to ingest poison is sufficient to establish battery.

Mayhem Under common law rules, the felony crime of mayhem required dismemberment, disablement of a bodily part, or disfigurement. Although modern statutes typically retain mayhem in some form, the trend is to abolish mayhem as a separate offense and to treat it as a form of aggravated battery, extending its scope to include permanent disfigurement.

Homicide At common law, criminal homicides were divided into three different offenses: murder, voluntary manslaughter, and involuntary manslaughter.

False Imprisonment The common law misdemeanor of false imprisonment is the unlawful confinement of a person without his consent. To constitute confinement, a victim must either be forced to go where he does not want to go or be compelled to stay where he does not want to stay. **Confinement**

may be accomplished by force, by a show of force, or by threats. As long as alternative routes are available, blocking a person's path is not confinement. Unless specifically authorized by law or by the consent of the person, confinement is unlawful. Nonetheless, consent must be freely given by one who has the capacity to consent. Coercion, threats, deception, or incapacity resulting from youth, retardation, or mental illness all invalidate consent.

Kidnapping Kidnapping is the confinement of a person involving either some movement of the victim or concealment of the victim in a secret place. Today, most define aggravated kidnapping as a separate offense. An aggravated kidnapping has occurred in the following situations: a person is kidnapped for a ransom; a person is kidnapped for the purpose of committing another offense, such as a robbery; a person is kidnapped with the intent of harming the person or with the intent of committing some sexual crime with the person; or when child stealing is involved. Similar to false imprisonment, free consent by one who has the capacity to consent is a defense to a kidnapping charge.

Sex Offenses

The term sex offenses encompass a wide array of sexually motivated conduct, including but not limited to: rape; incest and other sex offenses against children; sodomy; obscenity; and prostitution. However, in most jurisdictions, the common law crimes of adultery and fornication have either been abolished or are no longer enforced. Some sex offenses are universally prohibited, and others vary from state to state. For instance, rape is a crime in all states, but prostitution is not. In Nevada, prostitution has been legalized statewide.

Rape Under the common law, the crime of rape required that a man had sexual intercourse with a woman who was not his wife, and he committed the act without the woman's consent by use of force. Most states have changed the common law requirements. For instance, a majority of states have eliminated gender reference, making it possible to convict women and minors of the crime as well. Also, most states have eliminated the spousal exception clause. Further, a victim need not risk her life or serious bodily injury to prove resistance.

The crime involving one who is under the age of consent is referred to as statutory rape. Even with the consent of a minor, a defendant is guilty of statutory rape because minors under a certain age are incapable of giving legal consent. Since statutory rape is a strict liability crime, even a reasonable mistake about the victim's age, in most cases, will not absolve the defendant.²⁰³

Incest Generally considered a felony, incest is a statutory offense which consists of either a marriage or a sexual act between persons who are closely related. The states vary widely on what degree of relationship is required. Although most states restrict the crime to blood relatives, a large number of states include some non-blood relatives.

Obscenity Crimes that relate to the sale, display, or publication of material that appeals to a prurient sexual interest; crimes that involve patently offensive sexual conduct and lack serious literary, artistic, political, or scientific value are considered obscene under the law.

Offenses against Property

This section deals with a number of property offenses. Because of the inconsistencies sometimes seen in their use or interpretation, the table below has been provided to help distinguish between the

terms, larceny, embezzlement, and false pretenses. The major differences between the terms are related to the type of misappropriation of property.²⁰⁴

Conduct	Method	Intent
Larceny	Taking and asportation of property from possession of another person	Without consent or with consent obtained by fraud With intent to steal
Embezzlement	Conversion of property held on behalf of another	Use of property in a way inconsistent with ownership of another With intent to defraud
False Pretenses	Obtaining title to property	By consent gained through fraudulent misrepresentation With intent to defraud

Larceny

Larceny is a taking and carrying away, or an asportation, of personal property of another by trespass with intent to deprive permanently the person entitled to its possession. When property is severed from real estate and is taken, before it comes into possession of a landowner, it cannot be the subject of larceny. However, if a landowner gains possession of the severed material, the later taking of the material is larceny. Gas and electricity are considered tangible goods and can be the subject of larceny.²⁰⁵

Documents and instruments were considered merged with the item which they represented under common law rules. Unless they had monetary value themselves, these materials could not be the subject of larceny. Today, many state statutes have expanded larceny to include written documents that embody intangible rights. However, real estate and its fixtures cannot be the subject of larceny, nor can services or intangibles be the subject of larceny.

Larceny is a crime against possession. To commit larceny, it is only required that property be taken from someone who has a possessory interest superior to the defendant's. In other words, the property must be taken from one with possession by a defendant who does not have possession. If the defendant has possession of the property when he takes it, the resulting crime is not larceny, but it may be embezzlement. On the other hand, when a defendant has custody but not possession, the crime is larceny.

Embezzlement

There are distinctive differences between embezzlement and larceny. Embezzlement is defined differently from state to state, but it generally requires the fraudulent conversion of property of another person by a person who is in lawful possession of the property. A defendant accused of

embezzlement had lawful possession of someone else's property when the embezzlement occurred. Larceny requires a taking, or asportation, with the intent to permanently deprive. Embezzlement requires intentional conversion with the intent to defraud. The conversion required for embezzlement generally requires only

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that the defendant deals with the property in a way that is inconsistent with the agreement under which he holds it. It is not necessary that the defendant receive any direct personal gain from the embezzlement.

Pete, a pawn broker, acquires a unique emerald ring from Judy as security for a 15- day loan. After five days, Pete gives the ring to his mother for her birthday. Even though Pete received no direct personal gain from his act, this is embezzlement.

False Pretense

False pretense is part of the common law crimes and is defined as obtaining title to property of another by an intentional false statement of past or present fact with intent to defraud the other person. False pretense is different from larceny. If possession only is obtained by a defendant, the crime is larceny by trick. If title is obtained, the crime is false pretense.

In order to constitute false pretenses, a victim must be deceived by, or act in reliance upon, a misrepresentation. This must be a major factor or the sole cause of the victim's passing title to the defendant. In some instances, simply subjecting a victim to a risk of loss will suffice.

Several states have specific laws to cover conduct that resembles false pretenses; however, the conduct is different and requires separate treatment. For instance, a majority of states have bad check laws that prohibit the giving of an insufficient funds check or a no-account check with the intent to defraud. Some states also prohibit the knowing use of a fraudulent credit card, to obtain property.

Another crime related to false pretenses is mail fraud. Mail fraud is the use of the United States Mail with the intent to defraud another of money or of property. Mail fraud is a federal offense. An intended victim of mail fraud need not be defrauded; intent to defraud is sufficient for mail fraud. Computer larceny or computer fraud also falls into the category of false pretenses.

Forgery

Forgery is the making of a false document or the altering of an existing document to make it false and then passing the document to another with intent to defraud. Forgery was divided into two separate crimes under common law. The purpose of prohibiting forgery is to preserve the commercial system and the documents that are transferred within it.

Robbery

In all jurisdictions, robbery is considered a felony offense. Robbery is defined as the taking of personal property from a person or from his presence by force or intimidation with the intent to

permanently deprive the other person of the property. It is an aggravated form of larceny in which the taking is achieved by force or threats of force.

When threats are used, they must be threats of immediate death or serious physical injury against the victim, a member of the victim's family, or a person in the victim's presence at the time the threats are made. A threat to damage property is not enough unless it is a threat to destroy the victim's dwelling. The force or threats must be used to gain possession of the property or to retain possession immediately after the unlawful possession has been achieved. Many statutes define aggravated robbery as robbery accomplished with a deadly weapon.

Ralph grabs Mrs. Evans' handbag as he passes her on the street. Mrs. Evans turns around and grabs Ralph as he tries to run away. Ralph pushes her to the ground and flees. Ralph has just

committed a robbery since the force used to prevent the victim from regaining her property is sufficiently related to the taking.

Extortion

Under common law, extortion is a misdemeanor consisting of the corrupt collection of an unlawful fee by an officer under color of his office. Today, many statutes define extortion, which is also called blackmail, as obtaining property from another by means of oral or written threats. In some states, extortion occurs when the threats are made with the intent to obtain money or something of value. In other states, the money or property must be obtained as a result of the threat. In other words, the threat alone is insufficient. Although a threat alone is not sufficient to constitute robbery, it may constitute extortion because the threat does not have to cause physical harm, nor does the threat have to be one of immediate harm. Therefore, the establishment of the threat is critical for the prosecution and of hallmark value to the defense.

Receiving Stolen Property

Under the common law, the crime of receiving stolen property requires the receiving of possession or control of personal property known to have been obtained in an unlawful manner with the intent to deprive the owner of his property permanently. Even though physical possession amounts to receiving, receiving can also be established by a thief who puts stolen property in a place designated by the defendant or if the defendant arranges for the thief to sell the stolen property to a third party for profit.

Offenses against a Dwelling Burglary

Under common law, burglary was defined as the trespassory breaking and entering of the dwelling house of another in the night with the intent to commit a felony therein. As such, the term breaking required the removal of anything blocking entry. In Spanish, the word for burglary is minar; it implies a process of digging through something. Therefore, the opening of a closed but unlocked door was always sufficient to prove burglary, but the opening of a partially open door was not always sufficient.

In the past, burglaries committed during the day frequently were punished less severely than those committed at night. The protection of the dwelling has since been extended to all

occupied buildings and even to automobiles in some states; however, the laws are not consistent. For example, in some states, if a defendant breaks into a vehicle and steals a tape player, it is deemed a more serious offense than if he had stolen the entire vehicle.

Arson

Arson was defined as the malicious burning of the dwelling house of another under common law. Similar to murder, the malice requirement did not mean ill will, but rather, it required an intentional or reckless act. Ironically, under the common law rules, scorching was not arson; however, a slight charring of wood was arson even if no flames ever appeared. In another instance, blowing a house up with explosives was not arson unless the house also caught on fire. However, if the exploded fragments of a house caught on fire, it was not arson because the fragments of a house were not the same as a house intact. Also, torching or burning one's own house was not arson under the common law.

Today, most statutes have changed the common law rules significantly. Current statutes protect buildings other than dwelling houses. Under the M.P.C., a defendant is guilty of arson if he starts a fire or causes an explosion for the purpose of destroying the building or occupied structure of another. In

addition, anyone who burns his own building or structure is guilty of arson unless he can prove that he did not endanger other people or other property.²⁰⁶

Crimes Involving Judicial Procedure Perjury

Under common law, perjury was a criminal offense prohibited by specific statutes in each state and by federal statute. The making of a false statement with knowledge that the statement is false while under oath is perjury. The most complex element to prove is the defendant's knowledge that a statement is false; nonetheless, a finder of fact is permitted to infer a defendant's knowledge from the surrounding facts. A statement made under oath encompasses open court testimony; it also includes affidavits, testimony in a deposition, testimony before a grand jury, a certification, or any other statement that requires it to be given in front of a person authorized to administer oaths.²⁰⁷

In cases where a person's religious beliefs prevent him from giving an oath, the person will be permitted to give an affirmation. For purposes of perjury statutes, affirmations are treated the same as oaths. Some states require that the statement be material to the outcome of the case. In a state with this materiality requirement, if a statement is not material, a defendant cannot be convicted of perjury even if the statement is false. Truth is a complete defense to a charge of perjury.

Subornation of Perjury

Subornation of perjury refers to the act of convincing someone else to commit perjury. Any person who commits subornation of perjury is treated the same as the perjurer for purposes of sentencing.

Bribery

Bribery is prohibited by statute in every state as well as by federal statute. Originating under common law, bribery is defined as the solicitation or acceptance of anything of value with the purpose of violating a duty or trust. The two general classifications of bribery are bribery of a public official, and commercial bribery.

A. Comparison to Civil law

1. Burden of Proof

2. Sanctions

B. Criminal Liability

1. Criminal Act

2. State of Mind

a. criminal negligence

b. strict liability

C. Felonies v. Misdemeanors

D. Types of Crimes

1. Crimes Against Person

a. Homicide and related crimes

b. Other crimes against the person

2. Crimes Against Property

a. Burglary

b. Larceny

c. Obtaining Goods by False Pretenses

d. Receiving Stolen Goods

e. Arson

f. Forgery

3. Public Order Crimes

4. Crimes against governmental functions

E. Parties to Crime

1. Principal

2. Accomplice

3. Accessory before the fact

4. Accessory after the fact

F. Defenses to Criminal Liability

1. Alibi

2. Necessity

3. Capacity: Age, Mental Infirmary, Intoxication

4. Mistake

5. Duress

6. Entrapment

7. Self-Defense

8. Constitutional Defenses

G. Theories of Punishment

H. Criminal Procedure and Constitutional Safeguards

1. Criminal Justice process

a. Parties

b. Investigation

c. Court proceedings

2. Fourth amendment protections

a. probable cause

- b. reasonable expectation of privacy
- c. exclusionary rules

3. Fifth amendment protections

- a. due process of law
- b. double jeopardy
- c. self-incrimination
- d. Miranda rule and exceptions

4. Sixth amendment protections

5. Eight amendment protections